

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2015-5159 & 2016-3436

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
KATHRYN SCOTT, LICENSE NO. LPC 12782,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Kathryn Scott ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a Professional Counselor ("LPC") in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of Case Nos. 2015-5159 and 2016-3436. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or around July 2015, Respondent began providing substance abuse treatment to client JR.
 - b. Beginning or around August through November 2015, Respondent engaged in an inappropriate and intimate relationship with JR, which included exchanging inappropriate emails.
5. By virtue of the facts admitted in paragraph 4 above, the Board finds that Respondent violated §12-43-222(1)(g)(I) and (i), C.R.S.

§12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article violates this article if the person:

(g)(I) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline;

(i) Has maintained relationships with clients that are likely to impair such person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives.

PROBATION

6. Respondent's license to practice professional counseling in the State of Colorado is hereby placed on probation for three (3) years commencing from the effective date of this Order or the date Respondent's practice monitor is approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

7. The period of probation is tolled during any time that Respondent is not practicing in this state, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

8. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a LPC in Colorado, is being monitored by a practice monitor, and is in full compliance with all terms of this Order.

9. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, and in the event that Respondent's therapist agrees, Respondent may request termination of probation and the therapy requirement. Request for termination of probation and therapy must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that she has satisfied the terms and conditions of therapy and this Order.

PSYCHOTHERAPY

10. During the term of probation, Respondent shall undergo psychotherapy with a mental health provider approved by the Board ("therapist"). Within 30 days of the effective date of this Order, Respondent shall submit, in writing, three (3) proposed therapists for the Board's approval. Respondent shall include a program-approved therapist application from each potential therapist, with attached curriculum vita or resume. The therapist shall meet the following criteria:

- a. The therapist shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;
- b. It is recommended that the therapist have a minimum of five (5) years of experience and has not been subject to professional discipline;

- c. The therapist shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

11. Respondent must have a therapy monitor approved by the Board within two (2) months of the effective date of this Order. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of her practice until a monitor is approved. After the Board's written approval of the therapist, Respondent and the therapist shall enter into a written contract for psychotherapy within 30 days. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of her practice until the written contract for therapy monitoring is executed.

12. The therapist shall conduct therapy and report to the Board in writing as follows:

- a. The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once each month, unless otherwise approved by the Board based on recommendations of the therapist;
- b. The therapist shall report to the Board in writing both the progress of the psychotherapy and whether Respondent is able to practice with reasonable skill and safety for her clients, and must send a copy of each report to Respondent. The therapist shall submit his/her first report by the fifth day of the month following the first month of the psychotherapy. The therapist shall submit subsequent reports by the fifth day of every third month (i.e., on a quarterly basis) until the therapy is completed; and
- c. In the first report, the therapist shall state that s/he has received and read a copy of this Order, the Board's file, and the therapy evaluator's report, and must state that s/he understands and agrees to the duties and responsibilities s/he is undertaking as Respondent's therapist.

13. If, at any time, the therapist is of the opinion that Respondent is practicing professional counseling in a manner that does not meet the generally accepted standards of practice or has a condition that renders her unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under her care, the therapist shall report such opinion and the reasons for that opinion to the Board. The therapist shall make that report, in writing, within 48 hours of forming his/her opinion. The therapist shall send a copy of such report to Respondent when s/he sends the report to the Board. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

14. Either Respondent or her therapist may terminate the therapeutic relationship upon written notice to the other and the Board no less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event Respondent does not have another Board-approved therapist prior to the termination, Respondent shall cease the practice of

professional counseling until she has another Board-approved therapist in place. The subsequent therapist shall conduct therapy with Respondent and report to the Board in accordance with this Order.

15. Respondent cannot practice professional counseling during the period of probation if she is not undergoing therapy in accordance with this Order, unless otherwise provided by the Board based on the recommendations of the therapist.

CONTINUING EDUCATION

16. Within twelve (12) months of the effective date of this Order, Respondent shall successfully complete the ProBE – Professional/Problem Based Ethics program (www.cpepd.org) and shall register for the next available program in Colorado following the effective date of this Order. To successfully complete the program, Respondent must receive a passing evaluation or grade, without any condition or qualification. Upon completion of the program, Respondent shall ensure that a certificate/letter of completion is provided to the Board. If Respondent fails to register for and successfully pass the next available the ProBE program in Colorado, Respondent must cease practice and agrees to suspension of her practice until she successfully passes the ProBE program. These program hours completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or to meet any other licensure requirements.

TERMS AND CONDITIONS

17. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

18. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

19. All expenses incurred or associated with therapy monitoring, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

20. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

21. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

22. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

23. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

24. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

25. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

26. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

27. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

28. This Order shall be admissible as evidence at any hearing held before the Board.

29. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT


KATHRYN SCOTT
LPC 12782

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS


DARCIE MAGNUSON
Program Director

Effective this 8th day of
December, 2017.